Brazoria County District Court

Cause No. 2025-CV-0040

John Buckley, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	7-16-25
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant generally denies each allegation and requests that Plaintiff be required to prove the charges and allegations against Defendant by a preponderance of the evidence.

For further answer, and without assuming any burden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence proximately caused or contributed to the occurrence in question. Plaintiff failed to keep a proper lookout, failed to yield the right of way in the parking area, and failed to exercise ordinary care under the circumstances. Because Plaintiff's percentage of responsibility exceeds fifty percent, Pliantiff is barred from recovery under Chapter 33 of the Texas Civil Practice and Remedies Code.

Second, any recovery must be reduced by the percentage of responsibility attributable to Plaintiff or to any other responsible third party, as provided in Chapter 33.

Third, Defendant invokes its right to a credit or offset for any amounts paid to Plaintiff by or on behalf of Defendant, including settlement payments, as permitted under Texas law.